



POLICE DEPARTMENT

June 13, 2025

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202400049 (Incident Date: December 29, 2023) regarding Police Officer Kevin Coogan, Tax No. 969604 (PODS Case No. C-034333)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202400049, pertaining to Police Officer Kevin Coogan. Having analyzed the facts and circumstances regarding this matter, the Police Commissioner has determined that to pursue Charges and Specifications against said officer would be detrimental to the Police Department's disciplinary process.

In this matter, officers were responding to a 911 call of a violent, emotionally disturbed person. Almost immediately upon approach, the individual struck Officer Coogan in the face with a closed fist. As officers were struggling to place the individual into handcuffs, Officer Coogan stopped another officer from escalating the use of force. The officers were eventually successful in taking the individual into custody and escorted her to the hospital for psychiatric evaluation. While other officers were struggling to get the individual back into handcuffs after she slipped out of them, Officer Coogan told two other officers, "that fucking bitch punched me in the face," in reference to the individual.

It is clear from body-worn camera footage of the incident that the statement was not directed at the individual. Given that the individual was struggling and yelling at other officers at the time, it is not likely she heard the statement from Officer Coogan who was standing over to the side. Moreover, the case given that she did not allege any discourteous or offensive statement against Officer Coogan. After careful consideration, the statement does not appear to have been made to demean the individual because of her perceived gender. Nevertheless, the comment was unprofessional and served no legitimate law enforcement purpose. Officer Coogan has no formal disciplinary history and no prior substantiated CCRB cases. He was also rated as performing exceptionally in the prior year, and exceeding expectations the two years before that.

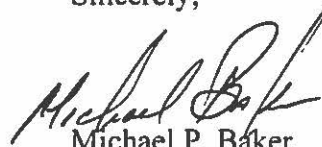
Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice

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and to retain jurisdiction over this matter, intends to impose no disciplinary action for the offensive language allegation. Additionally, the Police Commissioner intends to direct the issuance of a Schedule "A" Command Discipline with formalized training for the discourtesy allegation.

Sincerely,

A handwritten signature in black ink, appearing to read "Michael P. Baker". The signature is stylized with a large, looped initial "M" and a trailing flourish.

Michael P. Baker
Assistant Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



Dr. MOHAMMAD KHALID
INTERIM CHAIR

June 26, 2025

The Honorable Jessica Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, New York 10038

Re: CCRB Case No. 202400049 (Incident Date: December 29, 2023) regarding Police Officer Kevin Coogan, Tax No. 969604 (PODS Case No. C-034333)

Commissioner Tisch:

I am writing in response to the letter from Deputy Chief Michael P. Baker, dated June 13, 2025, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to dismiss the Charges and Specifications pertaining to Police Officer Kevin Coogan and issue a Schedule “A” Command Discipline and impose Training. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between the CCRB and the New York City Police Department, I am responding to Deputy Chief Baker’s notification.

Deputy Chief Baker’s letter acknowledges that the remark Officer Coogan made in reference to the complainant, to wit, “that fucking bitch punched me in the face,” was unprofessional and served no legitimate law enforcement purpose. However, it states that no disciplinary action will be taken for the offensive language allegation against Officer Coogan, because “the statement does not appear to have been made to demean the individual because of her perceived gender” (see June 13 Letter from Deputy Chief Baker, pg. 1). The CCRB respectfully disagrees with that assessment. Referring to someone as a “bitch”—historically used as a gender-based slur—is clearly a comment made on the perceived or actual gender of that person. As such, the statement goes beyond mere discourtesy.

Deputy Chief Baker’s letter further states that Charges and Specifications are not the appropriate form of discipline for the discourtesy allegation because of Officer Coogan’s positive employment history and the fact that he did not direct the discourteous remark at the complainant. To the extent that the letter distinguishes between remarks made to the complainant and those made to others, the CCRB respectfully disagrees. Such a fact-specific distinction is a potentially mitigating factor that should be weighed by the CCRB in recommending a penalty following the service of Charges and Specifications. Indeed, Administrative Guide 304-06, Page 1, Paragraphs 1-2 prohibit discourteous or disrespectful remarks regarding a civilian’s gender regardless of who hears the remarks.

Based upon the foregoing, it is respectfully requested that the NYPD serve Charges and Specifications upon Officer Coogan.

Respectfully submitted,

Andre D. Applewhite

Andre Applewhite

Chief Prosecutor

NYC Civilian Complaint Review Board



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June 26, 2025

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202400049 (Incident Date: December 29, 2023) regarding Police Officer Kevin Coogan, Tax No. 969604 (PODS Case No. C-034333)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated June 26, 2025, concerning the Civilian Complaint Review Board ("CCRB") case involving Police Officer Kevin Coogan, and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Coogan for the reasons expressed in my June 13, 2025 letter.

Therefore, the Police Commissioner affirms her decision to exercise Provision Two of the Memorandum of Understanding and now directs to impose no disciplinary action for the offensive language allegation. Additionally, the Police Commissioner directs the issuance of a Schedule "A" Command Discipline with formalized training for the discourtesy allegation.

Sincerely,

Michael P. Baker
Assistant Chief
Commanding Officer
Police Commissioner's Office

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